



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2052: management plan; water loss; percent

GRIFFIN FLOOR AMENDMENT

1. Increases, from 8% to 10%, the amount of permissible lost or unaccounted for water in a city, town or private water company's total distribution system.
2. States that 8% or less is a goal that should be considered a Best Management Practice.
3. Removes rulemaking requirements of the ADWR Director.

GRIFFIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2052
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 45-568, Arizona Revised Statutes, is amended to
3 read:

4 45-568. Management plan for fifth management period; guidelines

5 A. For the fifth management period, 2020 to 2025, the director
6 shall promulgate a management plan for each initial active management area
7 not later than January 1, 2019 pursuant to the guidelines prescribed in
8 section 45-567, subsections A and B, except that:

9 1. The director shall establish the historic annual net natural
10 recharge for any groundwater replenishment district in the active
11 management area, computed by determining the net natural recharge, as
12 defined by section 48-4401, for the groundwater basin beneath the district
13 during calendar years 1988 through 2017 and dividing the result by thirty.

14 2. The director may adjust the highest twenty-five ~~per cent~~ PERCENT
15 of the irrigation water duties established within an area of similar
16 farming conditions pursuant to section 45-567 by reducing each water duty
17 in an amount up to five ~~per cent~~ PERCENT, except that in making the
18 adjustment, no water duty may be reduced to an amount less than the
19 greater of the following:

20 (a) The highest water duty within the lowest seventy-five ~~per cent~~
21 PERCENT of the water duties computed within the area of similar farming
22 conditions for the fifth management period.

23 (b) A water duty computed for the farm unit under this paragraph
24 using an irrigation efficiency of eighty ~~per cent~~ PERCENT.

25 3. A person who is entitled to use groundwater pursuant to an
26 irrigation grandfathered right may apply to the director at any time
27 during the management period for an exemption from the irrigation water
28 duties established pursuant to this section. The director shall grant the

1 exemption if the person demonstrates to the director's satisfaction that
2 granting the exemption is consistent with achieving the management goal of
3 the active management area and that one of the following applies:

4 (a) Withdrawal of groundwater pursuant to the irrigation
5 grandfathered right during the management period will intercept
6 groundwater that would otherwise flow out of and be lost to the active
7 management area in the next fifteen years without entering another active
8 management area.

9 (b) Withdrawal of groundwater pursuant to the irrigation
10 grandfathered right during the management period will prevent encroachment
11 of a rising depth to groundwater level that will cause waterlogging
12 problems within the next fifteen years.

13 4. THE DIRECTOR SHALL REQUIRE A CITY, TOWN OR PRIVATE WATER COMPANY
14 THAT DISTRIBUTES WATER FOR MUNICIPAL USE TO LIMIT THE TOTAL QUANTITY OF
15 LOST AND UNACCOUNTED FOR WATER OF THE CITY'S, TOWN'S OR PRIVATE WATER
16 COMPANY'S DISTRIBUTION SYSTEM TO ~~[EIGHT]~~ [TEN] PERCENT OR LESS OF THE
17 TOTAL QUANTITY OF WATER FROM ANY SOURCE, INCLUDING EFFLUENT, THAT ENTERS
18 THE CITY'S, TOWN'S OR PRIVATE WATER COMPANY'S DISTRIBUTION SYSTEM. THE
19 DIRECTOR SHALL CALCULATE THE TOTAL QUANTITY OF LOST AND UNACCOUNTED FOR
20 WATER ON EITHER A CALENDAR YEAR BASIS OR A THREE-YEAR AVERAGE BASIS BASED
21 ON THE APPLICABLE CALENDAR YEAR AND THE TWO PRECEDING CALENDAR
22 YEARS. [ACHIEVING EIGHT PERCENT OR LESS OF LOST AND UNACCOUNTED FOR WATER
23 IS A GOAL THAT SHOULD BE CONSIDERED A BEST MANAGEMENT PRACTICE.]

24 B. Within thirty days after the management plan for the fifth
25 management period is adopted, the director shall give written notice in
26 the manner and to the persons prescribed in section 45-565, subsection B
27 and shall give written notice of the non-per capita conservation program
28 established pursuant to section 45-568.01 to all municipal providers. Two
29 years before the compliance date specified in the management plan for any
30 irrigation water duty, intermediate water duty, conservation requirement
31 or intermediate conservation requirement, the director shall give
32 additional written notice by first class mail to the last known addresses
33 of the persons prescribed in section 45-565, subsection B and this
34 subsection.

35 C. Except for a person who is exempt from irrigation water duties
36 under section 45-563.02, subsection A, all persons notified pursuant to
37 subsection B of this section shall comply with the applicable irrigation
38 water duty or conservation requirements for the fifth management period
39 not later than January 1, 2025 and shall remain in compliance until the
40 legislature determines otherwise.

41 ~~<<Sec. 2. Rulemaking~~

42 ~~Within six months after the effective date of this act, the director~~
43 ~~of the department of water resources shall adopt rules for the management~~
44 ~~plan for the fifth management period that are consistent with this act.>>~~

House Amendments to H.B. 2052

- 1 Enroll and engross to conform
- 2 Amend title to conform

GAIL GRIFFIN

2052FloorGRIFFIN.docx

02/23/2026

10:28 AM

H: CW/l's

130ZRUSMN